

# The Tripura Cinema (Exhibition of Films by Video Cassette Recorder) Licensing Rules, 1984

Source: <https://indiankanoon.org/doc/93490092/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

0

, Cited by

0

]

State of Tripura - Act

The Tripura Cinema (Exhibition of Films by Video Cassette Recorder) Licensing Rules, 1984

TRIPURA

India

The Tripura Cinema (Exhibition of Films by Video Cassette Recorder) Licensing Rules, 1984

Rule THE-TRIPURA-CINEMA-EXHIBITION-OF-FILMS-BY-VIDEO-CASSETTE-RECORDER-LICENSING-RULES-1984  
of 1984

Published on 31 May 1984

Commenced on 31 May 1984

[This is the version of this document from 31 May 1984.]

[Note: The original publication document is not available and this content could not be verified.]

The Tripura Cinema (Exhibition of Films by Video Cassette Recorder) Licensing Rules, 1984

Published vide Notification No. F. 54 (28)-Revenue/83, dated 31-5-1984, published in the Tripura Gazette, Extraordinary  
No. 114, dated 31-5-1984

Last Updated 18th February, 2020

Part I

General

1.

Short title, extent and commencement.

(1)

These rules may be called the Tripura Cinema (Exhibition of Films by Video Cassette Recorder) Licensing Rules, 1984.

(2)

They shall extend to the whole of Tripura.

(3)

They shall come into force with effect from the date of their publication in the Tripura Gazette.

2.

Definitions.

- In these Rules, unless the context otherwise requires,-

(a)

"Act" means the Cinematograph Act, 1952 (XXXVII of 1952);

(b)

"Cinema "means any place wherein a public exhibition of film by means of Video Cassette Recorder is given for commercial purpose;

(c)

"auditorium" means the portion of the licensed place in which accommodation is provided for the public to view the Cinematograph Exhibition by Video Cassette Recorder;

(d)

"Existing cinema " means a cinema for which licence has been granted in accordance with the Tripura Cinematograph Rules, 1956;

(e)

"Form" means a form appended to these rules;

(f)

"Film " means a cinematograph film;

(g)

"Licence" means a licence granted under Part III of the Act in accordance with these rules;

(h)

"Licensing authority" means the authority specified in Section 11 of the Act;

(i)

"Video Cassette Recorder (VCR)" means a cinematograph for the purpose of giving cinematograph exhibition of recorder film.

Part II

Licence

3.

Cinema licence.

- No place shall be opened or allowed to remain open for use as a cinema unless the person being owner, tenant or occupier thereof shall have obtained a licence for the purpose.

4.

Eligibility.

- No person other than a company or association shall be entitled to obtain or held any licence under the Act unless such person has attained the age of 20 years.

5.

Application for cinema licence.

- The application for a licence shall be made in Form I to the licensing authority and the application shall be accompanied by the following documents, namely:

(i)

Site plan of building and certificate of Executive Engineer of Public Works Department that the building is safe for being used as a cinema;

(ii)

documents showing the ownership or tenancy of the place;

(iii)

certificate of District Health Officer regarding suitability of site consistent with public health;

(iv)

certificate of Superintendent of Police of the District regarding public safety and convenience;

(v)

a Treasury receipt for the payment of the fees as specified in the rules; against the relevant head of account that may be specified by the Government;

(vi)

certificate from the Executive Engineer, Electrical Division that electric installations are in order;

(vii)

the certificate referred to above shall be valid for a period not exceeding one year:

Provided that in case of a Video exhibition provided in a public service vehicle it shall not be necessary to supply documents specified in Clauses (i), (iii), (iv) and (vi) to above.

6.

Grant of licence.

- Within fifteen days of receipt of such application the Licensing Authority-

(a)

if the application is not in order shall return the same to the applicant for resubmission within a period of 60 days failing which the application shall be treated as rejected and fresh application shall have to be made ;

(b)

if the application is in order, complete with all required documents, after conducting such enquiry either directly or through an officer subordinate to him and after having satisfied that all rules have been complied with, may grant a licence to the applicant in Form II on such terms and conditions and subject to such restrictions as the Licensing Authority may determine.

7.

Power to refuse licence.

- The Licensing Authority shall have absolute discretion to refuse a licence if the cinema is likely to cause obstruction, inconvenience, annoyance, risk, danger or damage to the public or passers by in the vicinity of the cinema or for any other reason to be recorded in writing.

8.

Duration of licence.

- A licence granted or renewed in accordance with these rules shall be valid for a period not exceeding one year from the date of its issue or renewal as the case may be.

9.

Renewal of licence.

- The Licensing Authority may on application being made, accompanied with all fresh documents or certificates as mentioned in Rule 5, renew the cinema licence. An application for renewal of licence shall be made on ordinary paper by the licensee.

10.

Fee.

- Every application for a licence or renewal of a licence shall be accompanied with the following fees:

(1)

Where accommodation of the cinema does not exceed 50 seats

Rs. 100.00

(2)

Where accommodation of the cinema exceeds 50 seats but does not exceed 200 seats

Rs. 200.00

11.

Rate of admission and amusement tax.

- The Licensing Authority while granting or renewing the licence shall fix the minimum number of the persons to be admitted at a time, the number of shows with timings to be conducted on a day and also fix the rates of admission which

are liable for taxation under the Tripura Amusement Tax Act, 1973 and the rules made thereunder.

### Part III

#### Location and Building

12.

Licensing.

- No cinema shall be licensed under the Act unless the cinema conforms to the rules laid down in this Part.

13.

Minimum distance.

(1)

The distance between the existing permanent or semi-permanent or temporary cinemas and the Video public exhibition shall be not less than 100 metres.

(2)

The distance between one Video centre and another Video centre shall be not less than 100 metres.

14.

Place of exhibition.

- The public exhibition of film on Video shall be allowed only in commercial areas and in no case such exhibition shall be allowed in residential areas.

15.

Entrance and exit to be on public thoroughfare.

- Cinema shall have a reach frontage on the public thoroughfare upon which the site of such cinema abuts and in such frontage there shall be suitable means of entrance and exit for the public.

16.

Conditions and restrictions.

- (i) The distance between the Video screen and the first row of seats shall be not less than two metres and no person shall be admitted within such space.

(ii)

The seats in the auditorium shall be according to the area of the auditorium, and shall be determined by calculating at the rate of 20 persons per 9 square metres of floor area after excluding the area the entrances, passage, gangways, stage and all places to which the public are not admitted.

(iii)

The chairs shall be battened together in complete lengths.

(iv)

There shall be an intervening space of at least 0.35 metre between the back of one seat and front of the seat immediately behind measured between perpendiculars. In the case of establishment for serving coffee, tea, cold drinks and other beverages, required tables should also be provided.

(v)

These shall be a passage of 0.90 metre in width for every ten rows of seating accommodation.

(vi)

The gangways shall be not less than 0.90 metre in width and shall be so arranged that no seats shall be more than 10 seats from a gangway.

(vii)

All the cables, wires and shall be of ISI grade and the wiring shall pass through conduit pipes only.

(viii)

There shall be a separate circuit controlled by a suitable linked switch for supply of electricity to the Video hall.

(ix)

Three pin plugs with the third pin effectively connected to earth shall be used.

(x)

Separate circuit shall be provided for lights, fans and other equipment respectively.

(xi)

An automatic voltage regulator/stabiliser which can provide an output voltage of 230 + 6% shall be installed before the Video equipment.

(xii)

Video films shall not be exhibited in a totally dark room or hall. A dim light (about 25 watts to 40 watts bulb) shall be kept burning throughout the exhibition of films. The bulb shall be placed at right angles to the line of vision of the public.

(xiii)

One portable fire extinguisher of C 02 or CTC or D.P.C. type of 1 Kg. capacity and one bucket (9 lits.) filled with sand shall be provided.

(xiv)

There shall be at least two doorways fitted with doors to open outwards.

(xv)

There shall be as many extractors, exhaust fans, ceiling fans or other means of artificial ventilation as may be specified by the Licensing Authority in consultation with the Health Officer.

(xvi)

One W.C. and one Urinal for every 50 persons or less for exclusive use of each sex shall be provided.

17.

The building where such exhibition is given shall have open space for parking of vehicles.

18.

All the provisions in the preceding two rules shall be applicable to Video Cassette Recorders and Video Cassette Projectors or any other equipment used for public exhibition of films on Video in any place including hotels, restaurants, bars and clubs. ,

#### Part IV

#### Miscellaneous

19.

Licensee or his nominees to be present.

- Either the holder of the cinema licence or any person appointed as manager and whose name has been entered as such in the licence shall be present at the cinema to which licence applies during the whole time when the premises are open to the public for exhibition of film by means of Video Cassette Recorder.

20.

Display of licence.

- The licensee shall have the licence displayed prominently on the wall of the office of the cinema.

21.

Licence not transferable.

- A licence granted under these rules shall not be transferable, but shall be personal for the benefit only of the person to whom it is granted and on the death of the licensee shall be deemed to be revoked.

22.

Suspension or cancellation of licence.

- (1) The Licensing Authority may suspend or cancel any licence granted in accordance with these rules for contravention of any provision of these rules or any condition of the licence after giving the licensee an opportunity to show cause as to why the licence should not be suspended or, as the case may be, cancelled.

(2)

Notwithstanding anything contained in sub-rule (1), the cinema licence shall be liable to immediate suspension or cancellation by the Licensing Authority if in the opinion of the Licensing Authority the place is insufficient or is causing danger to the safety or health or inconvenience to the public.

23.

Appeal.

(1)

Any person aggrieved by the decision of the Licensing Authority refusing to grant a licence or suspending or cancelling a licence may within thirty days from the date of communication of the order of such refusal appeal to the State Government.

(2)

An officer not below the rank of Secretary may be authorised by the State Government to hear appeals under this rules.

24.

Savings.

- Nothing in the Tripura Cinematograph Rules, 1976 shall apply to cinema to which these rules apply.

Form I

[See Rule 5]

Application for licence under Rule 5 of the Tripura Cinema (Exhibition of Film by Video Cassette Recorder) Licensing Rules, 1984

1. Name of applicant.....

2. Father's name.....

3. Age.....

4. Address.....

5. Name of place and description where exhibition of film for public shall be made by the VCR.....

6. Whether certificates from the Executive Engineer as required under Rule 5 (i), from District Health Officer under Rule 5 (iii), Superintendent of Police under Rule 5 (iv) and Executive Engineer, Electrical Division under Rule 5 (vi) have been obtained (Certificate in original to be attached).....

7. Time schedule or exhibition of film....

8. Seating arrangement in the building.....

9. Other details regarding building.....

10. Treasury Voucher No. and the indicating deposit of licence/renewal fees.....

(Signature of the applicant)

Form II

[See Rule 6]

Licence for exhibition of film by Video Cassette Recorder

Under the power vested in the District Magistrate under Section 11 of the Cinematograph Act, 1952 (XXXVII of 1952), licence is hereby granted to the person mentioned below for giving exhibition by means of cinematograph (recorded film of series of films on the cassettes by Video Cassette Recorder) for the public subject to the under-mentioned conditions and restrictions:

1. Name, father's name and address.....

2. Situation of the place.....

3. Areas in square metres.....

4. Special conditions, if any, on which the licence is granted.....

5. Rules of admission.....

Conditions and Restrictions

1. The licence is granted subject to the provisions of the Cinematograph Act, 1952, and the Tripura Cinema (Exhibition of Films by Video Cassette Recorder) Licensing Rules, 1984.

2. This licence does not exempt the licensee or his servants or agents from taking out any other licence required by or otherwise complying with any other law or rules or bye-laws made thereunder.

3. The licensee shall not exhibit advertisement slides relating to sexual diseases and medicines to correct sexual disorders or purporting to assist the childless in begetting children.

4. The licensee shall not permit obscene or objectionable posters or pictorial publicity material to be displayed in the licensed premises.

5. The licensee shall not exhibit or permit to be exhibited in the cinema-

(a)

any film other than a film which has been certified by the Board of Film Censors constituted under Section 3 of the Cinematograph Act, 1952 (No. XXXVII of 1952), as suitable or unrestricted public exhibition or for public exhibition restricted to adults and which, when exhibited, displays the prescribed mark of the Board, and has not been altered or tampered with any such mark as affixed thereon;

(b)

any film which has been certified by the Board of Film Censors as suitable for public exhibition restricted to adults to any person who is not an adult;

(c)

any film the exhibition of which is suspended under Section 6, of the said Act.

6. The licensee shall prominently exhibit at each public entrance of the premises, whenever the premises are open to the public, a notice indicating in tabular form and in clear bold letters and figures-

(i)

the title of each Film, to be shown on that day;

(ii)

the approximate times of commencement of each sum film;

(iii)

whether each film is suitable-

(a)

for unrestricted public exhibition and has received certificate; or

(b)

for public exhibition restricted to adults and has received certificate;

(iv)

whether persons who are not adults will be admitted to the exhibition of the film.

7. The licensee shall indicate clearly the nature of any certificate received from the Board of Film Censor by the 'U' or 'A', as the case may be, in the advertisement of the film displayed at the premises.

8. The licensee shall not exhibit or permit to be exhibited, in the cinema, any photograph, pictures or poster which depicts, represents or purports to represent a scene or shot which has been excised from any film under the orders of the aforesaid Board of Film Censor of the Central Government.

9. The licensee shall not exhibit or permit or cause to be exhibited any poster or picture which is a gross misrepresentation of the film itself and which is obscene.

10. The licensee shall not continue any performance or exhibition of any film by means of a cinematograph after 12.00 midnight.

11. The licensee shall inform the licensing authority the titles of film to be exhibited during the week.

12. The licensee shall not except with the previous permission of the licensing authority admit in the cinema auditorium or of in any part of division thereof a number of persons more than that indicated below or not increase or reduce the number of seats in any such part of division:

(Here enter name of division or part of the auditorium)

(Here mention the number of persons that may be admitted in the auditorium)

13. The licensee shall comply with any direction and instructions (including any direction for temporarily closing the cinema premises) which the licensing authority may, from time to time, issue for preventing any obstruction, inconvenience, annoyance, risk, danger or damage to the audience in the cinema premises or the public or the residents or passers-by in the vicinity of the cinema premises or for the maintenance of public safety and the prevention of the disturbance therein.

14. This licence is not transferable but is personal for the benefit of the licensee mentioned above.

15. The person nominated as Manager under Rule 20 is Shri.....son of.....resident of.....

16. The licence shall always keep the extractors, exhaust fans, ceiling fans, or the air-conditioning apparatus and the like, in perfect working order and shall put them on throughout the period when film is being exhibited and the public is seated in the auditorium.

17. All the exit doors shall be kept unbolted during the performance.

18. Smoking in the building, auditorium or enclosure during any cinematograph exhibition, shall not be permitted and any infringement of this condition by any person shall be brought to the notice of the police by the management immediately after the occurrence.

19. The licensee shall at once send a report of fire or alarm of fire, however slight to the nearest fire brigade.

20. The number of persons admitted or the number of tickets sold for admission into any part of the auditorium at any particular cinematograph exhibition shall not exceed the number specified in the licence for that part of the auditorium.

21. Each exit notice shall be illuminated by a light and such lights shall be kept burning the whole time the public are on the premises; provided that this will not apply to Video exhibition provided in transport vehicle.

22. No chair or other obstruction shall be placed in any passage, gangway, or stair-case.

23. The licensee shall not commit any offence punishable under the Tripura Amusement Tax Act, 1973.

24. The licensee shall not exhibit or permit to be exhibited more than one full length feature film at a show on any one ticket.

25.

The licensee shall comply with such directions as the Licensing Authority or the State Government may, by general or special order gives as to the manner in which approved films shall be exhibited in the course of any performance.

26.

The licence shall be subject to cancellation or suspension for the breach of any conditions.

27.

The licence is valid till the.....day of.....19.. Given under my hand and seal this.....day of 19.

(District Magistrate)Licensing Authority

Renewals

Date of renewal

Valid till

Fee paid

Signature of Licensing Authority

1

2

3

4

Related AI tags, queries and research notes

Translation